

		character of outrage frequently associated with crime”]; Veh. Code, § 20001, subds. (a)-(b) [felony offense for a driver involved in an injury accident to fail to provide the information and assistance required by Veh. Code, §§ 20003-20004]; see also Compl. ¶¶ MV-1, GN-1(2)-(3), IT-1(3), IT-1(5), EX-2(2)-(3).) Defendant shall give notice.
3	FCI Lender Services, Inc. vs. Tenenbaum 2026-01557568	Demurrer to Complaint <i>Vacated. See minute order dated 6/26/26.</i>
4	Jerisat vs. Young 2025-01476022	Motion for Order to Prohibit Plaintiff from Appearing in Pro Per Defendant Steven Young’s Motion to Prohibit Plaintiff Martin Jerisat from Appearing in Pro Per at Court Proceedings is DENIED. As an initial matter, the notice of motion does not provide 16 court days (plus two court days for manner of service) of notice of the hearing. Even if this procedural defect is set aside, the Motion is moot, as Plaintiff Martin Jerisat has filed an association of counsel, which absolves all of the purported concerns Defendant Young lists as a basis for this motion. Plaintiff shall provide notice.
5	JIMENEZ vs. CLEARPATH MEDICAL, LLC 2026-01556323	Demurrer to Complaint Defendant ClearPath Medical, LLC’s Demurrer to the Complaint is SUSTAINED. The demurrer has not been opposed by Plaintiff Karina Fernandez Jimenez. Plaintiff’s failure to oppose the demurrer may be treated as an implied concession to the merits of the same. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. (CRC 3.1113(a).) Based upon these grounds, and the reasons stated below, the court SUSTAINS the unopposed demurrer. <i>First Cause of Action – Pregnancy Discrimination</i>

	The Federal Employment and Housing Act (FEHA) makes it an unlawful employment practice to discharge a person from employment or discriminate against the person in the terms, conditions, or privileges of employment, based on “race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation.” (Gov. Code § 12940(a).) To establish a prima facie case of discrimination, a plaintiff “must generally provide evidence that: (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (<i>Dinslage v. City and County of San Francisco</i> (2016) 5 Cal.App.5th 368, 378.) ClearPath argues that Plaintiff cannot state a claim for discrimination because the Complaint fails to allege that it was Plaintiff’s employer. Although the Complaint alleges that ClearPath and the staffing agencies were “joint employers,” such conclusions are contradicted by the allegations in the Complaint. Plaintiff alleges that Lyneer was responsible for recruitment, hiring, and paying the assigned individuals, including making the appropriate payroll deductions and employer mandated payments. (Complaint, ¶ 13.) Lyneer also received all perspective employment applications and determined if the applicants were suitable for referral to ClearPath. (Complaint, ¶ 16.) Additionally, Lyneer and not ClearPath terminated Plaintiff’s employment. (Complaint, ¶ 36.) Therefore, ClearPath did not take any adverse employment action against Plaintiff. Accordingly, Plaintiff has not stated a claim for pregnancy discrimination, and the demurrer to the first cause of action is SUSTAINED. <i>Second Cause of Action – Failure to Accommodate</i> To prove her claim of failure to accommodate, Plaintiff must prove: (1) she was employed by Defendant; (2) she had a disability; (3) Defendant knew of the disability; (4) Plaintiff could perform the essential duties of his position with a reasonable accommodation; (5) Defendant failed to provide reasonable accommodation; and (6) resulting harm. (CACI 2541.)
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		Again, Defendant argues that the Complaint does not allege that ClearPath was Plaintiff's employer. Additionally, the Complaint alleges that following notification of her pregnancy, ClearPath moved Plaintiff to another work area in attempt to avoid having her work with cables, which was one of her work restrictions. (Complaint, ¶¶ 25-27.) However, even now and then she was asked to burn cables or to be around the area where cables were being burned. (Complaint, ¶ 29.) The Complaint, however, does not allege how occasionally burning cables caused her harm. Accordingly, Plaintiff has not stated a cause of action for failure to accommodate, and the demurrer to the second cause of action is SUSTAINED. <i>Third Cause of Action – Failure to Engage in the Interactive Process</i> To establish her claim that Defendant failed to engage in the interactive process, Plaintiff must prove: (1) she was employed by Defendant; (2) she had a disability known to Defendant; (3) he requested a reasonable accommodation so that he could perform the essential job requirements; (4) she was willing to participate in the interactive process; (5) Defendant failed to engage in the interactive process; and (6) resulting harm. (CACI No. 2546.) If the interactive process fails, liability "for the failure rests with the party who failed to participate in good faith." (<i>Gelfo v. Lockheed Martin Corp.</i> (2006) 140 Cal.App.4th 34 54.) Again, Defendant argues that the Complaint does not allege that ClearPath was Plaintiff's employer, and that ClearPath moved Plaintiff to another work area in response to her work restrictions. Accordingly, Plaintiff has not stated a cause of action for failure to engage in the interactive process, and the demurrer to the third cause of action is SUSTAINED. <i>Fourth Cause of Action – Retaliation</i> "To establish a prima facie case of retaliation, the plaintiff must show (1) he or she engaged in a protected activity; (2) the employer subjected the employee to an adverse employment action; and (3) there exists a causal link between the protected
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	activity and the employer's action.” (<i>Yanowitz v. L’Oreal USA, Inc.</i> (2005) 36 Cal.4th 1028, 1042.) As stated above, Defendant argues the Complaint does not allege that ClearPath was Plaintiff’s employer. Moreover, Plaintiff was terminated by Lyneer, therefore, no adverse employment action was taken by ClearPath. Accordingly, Plaintiff has not stated a cause of action for retaliation, and the demurrer to the fourth cause of action is SUSTAINED. <i>Fifth Cause of Action – Retaliation in Violation of the California Family Rights Act (CFRA)</i> For the same reasons as set forth in the fourth cause of action, the demurrer to the fifth cause of action is SUSTAINED. <i>Sixth Cause of Action – Wrongful Termination in Violation of Public Policy</i> As stated above, Defendant argues that the Complaint does not allege that ClearPath was Plaintiff’s employer nor did it terminate Plaintiff’s employment. Accordingly, Plaintiff has not stated a cause of action for wrongful termination, and the demurrer to the sixth cause of action is SUSTAINED. <i>Seventh Cause of Action – Failure to Prevent Discrimination</i> To establish a claim for failure to prevent discrimination, the Plaintiff must first establish she was an employee of Clearpath. (CACI 2527.) As stated above, Defendant argues that the Complaint does not allege that ClearPath was Plaintiff’s employer. Accordingly, Plaintiff has not stated a cause of action for failure to prevent discrimination, and the demurrer to the seventh cause of action is SUSTAINED. <i>Eighth Cause of Action – Intentional Infliction of Emotional Distress (IIED)</i>
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		Defendant argues that Plaintiff has not identified an “act” attributed to ClearPath. There are no allegations as to how ClearPath discriminated, retaliated, failed to accommodate or engage in the interactive process with Plaintiff. Lyneer, and not ClearPath, terminated Plaintiff’s employment. Thus, the Complaint fails to allege a basis for the IIED claim. Accordingly, the demurrer to the eighth cause of action is SUSTAINED. Although the demurrer is unopposed, the court finds that Plaintiff should be given an opportunity to cure the defects in the operative complaint that were raised by Defendant in the demurrer. Plaintiff has 15 days leave to amend. Defendant ClearPath shall give notice.
6	Kwak vs. Mistry 2023-01307909	Motion to Set Aside/Vacate Dismissal Plaintiff William H. Kwak’s motion for order setting aside the dismissal entered on August 4, 2025 and restoring this action to the active civil docket is <i>conditionally</i> GRANTED. The court does consider the fact that plaintiff’s counsel filed an opposition to defendants’ motion to dismiss (ROA 124) and argued the motion to dismiss on 6/26/25 (ROA 132), therefore plaintiff’s argument there was “mistake, inadvertence, surprise, or neglect” under Code of Civil Procedure section 473, subdivision (b) is not compelling. But courts apply section 473 liberally in favor of relief if the opposing party will not suffer prejudice. (<i>Minick v. City of Petaluma</i> (2016) 3 Cal.App.5th 15 [reflecting the policy preference for resolving cases on their merits rather than on procedural defaults].) The dismissal shall be set aside upon payment of defendants’ reasonable attorney fees in the amount of \$4,000.00. The court has considered the time and expense incurred by defendants’ counsel which includes: preparing the motion to dismiss and reply brief; two court appearances associated with the motion to dismiss on 6/26/25 and 7/18/25; the opposition to plaintiff’s motion to set aside; and today’s court appearance. The court has relied on its own experience and knowledge as to the extent and nature of the services required in bringing and opposing the motions and finds \$4,000 in attorney’s fees to be reasonable.